

Ashok v. State of U.P. — bill-dispute writ relegated to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 22 October 2013 · WRIT - C No. 57825 of 2013 · **Writ disposed of; petitioner relegated to clause 6.5 complaint.**

HEADNOTE

A consumer who sought quashing of an Executive Engineer's notice of outstanding electricity dues of Rs.32,566/- was held to have a remedy by complaint under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer. The writ was disposed of with a direction that any such complaint be considered, decided and communicated.

FACTUAL SUMMARY

Ashok filed Writ-C No. 57825 of 2013 in the Allahabad High Court against the State of Uttar Pradesh and others, seeking to quash a notice dated 10 July 2013 issued by the Executive Engineer, Electricity Department, for outstanding dues of Rs.32,566/-. He disputed the correctness of that bill in the writ. Counsel for the petitioner was heard; Sri Mahboob Ahmad appeared for the respondents. The order records no further facts about the supply, meter or billing period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

Where a consumer disputes the correctness of an electricity bill and seeks quashing of a notice of outstanding dues, the writ court will not decide the dispute on merits if a complaint under Para 6.5 of the U.P. Electricity Supply Code, 2005 lies before the Executive Engineer; the petition is disposed of with a direction that any such complaint be considered, decided and communicated. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND NOTICE DATED 10.7.2013 DEMANDING RS.32,566/-

Merits of the demand were not examined; petitioner was relegated to a clause 6.5 complaint. ¶ 1